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Case No. 991/4579/26
Proceeding 1-ks/991/4592/26

HIGH ANTI-CORRUPTION COURT

RULING

08 May 2026 **Kyiv**

Investigating Judge of the High Anti-Corruption Court O.V. Fedorov,

with the participation of:

court session secretary Homeniuk A.S.,

representative of the applicant – advocate Miftakhutdinov V.S.,

SBU investigator Romashkin D.S.,

prosecutor Safaryan O.E.,

having examined in open court session the motion of advocate Miftakhutdinov V.S. to cancel property seizure, submitted in the interest of Bohuslaiev O.V. within criminal proceeding No. 22017000000000272 dated 6 July 2017

ESTABLISHED:

On 06 May 2026, the specified motion was received by the High Anti-Corruption Court, which on the basis of the report of automated allocation of cases between judges was transferred for examination to investigating judge Fedorov O.V.

1. Content of the submitted motion

In substantiation of the motion, the advocate indicates that investigators of the Main Investigation Department of the Security Service of Ukraine are conducting pre-trial investigation of criminal proceeding No. 22017000000000272 dated 6 July 2017, within which his client Bohuslaiev O.V. was served with notice of suspicion of committing the crime provided for by Part 3 of Article 209 of the CC of Ukraine.

On 13 May 2025, by ruling of the investigating judge of the Shevchenkivskyi District Court of Kyiv in case No. 761/19003/25, with the aim of ensuring preservation of physical evidence and confiscation of property as a type of punishment, seizure was imposed on property which, in particular, belongs to Bohuslaiev O.V., namely:

- a share in the charter capital of LLC "Firm «Zhekon»" in the amount of 51 %;

- an apartment with an area of 42.24 sq.m. at the address: Zaporizhzhia, Lenina Avenue, bldg. 129, apt. 37 (RNM - 18402097);

- a garage with an area of 38.2 sq.m. at the address: Zaporizhzhia, servicing cooperative «Dniprohes», garage 49 (RNM - 27062653);

- an apartment with an area of 88.9 sq.m. at the address: Autonomous Republic of Crimea, Yalta, Karla Marksa Street, bldg. 18a, apt. 29 (RNONM - 200428101119).

Also, by this ruling the abovementioned property was transferred to the management of the National Agency of Ukraine for Finding, Tracing and Management of Assets Derived from Corruption and Other Crimes (hereinafter - ARMA).

At the same time, the advocate considers that the seizure on the property of Bohuslaiev O.V. was imposed unreasonably, since:

1) the specified property is not and cannot be physical evidence, as it was acquired long before the alleged commission of the crime incriminated against him, in connection with which it does not meet the criteria of physical evidence defined by Article 98 of the CPC of Ukraine;

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2) any decision of the prosecution on recognizing the property as physical evidence is absent;

3) the property could not be transferred to the management of ARMA pursuant to part 6 of Article 100 of the CPC of Ukraine, since: (1) it is not physical evidence, (2) it has not been established that the value of the property exceeds 200 sizes of the subsistence minimum for able-bodied persons, (3) the prosecution did not apply to Bohuslaiev O.V. to obtain consent for the transfer of the property to the management of ARMA, (4) it has not been established that the transfer of the property to the management of ARMA is necessary to achieve the aim of such transfer - preservation of the property or its economic value;

4) the prosecution has not proven the possibility of achieving the aim of the seizure provided for by part 1 of Article 170 of the CPC of Ukraine;

5) any information is absent that would testify to the commission by Bohuslaiev O.V. of actions aimed at concealing, damaging, spoiling, destroying, transforming, alienating the property;

6) during the resolution of the issue of seizing the property, the consequences of its application and transfer to the management of ARMA were not taken into account;

7) the seizure is disproportionate and excessively burdensome, which violates the requirements of Article 1 of the First Protocol to the Convention for the Protection of Human Rights and Fundamental Freedoms.

In view of the above, the advocate is convinced that the seizure imposed within criminal proceeding No. 22017000000000272 dated 6 July 2017 on the property of Bohuslaiev O.V. is subject to cancellation.

2. Position of the court session participants

Advocate Miftakhutdinov V.S. supported the demands of his motion and requested to grant it.

Prosecutor Safaryan O.E. objected to granting the motion, arguing that the seizure on the property of suspect Bohuslaiev O.V. was imposed entirely reasonably, there are no grounds for its cancellation. He informed that another defense counsel of Bohuslaiev O.V. – advocate Boiko S.H. had already appealed the ruling of the investigating judge of the Shevchenkivskyi District Court of Kyiv dated 13 May 2025 in case No. 761/19003/25 in appellate procedure, following which, by ruling of the Kyiv Court of Appeal dated 30 March 2026, granting the appellate complaint of the defense counsel was refused.

SBU Investigator Romashkin D.S. also objected to granting the advocate's motion, considering it unfounded, since the seizure, in his conviction, was imposed reasonably.

3. Assessment and motives of the investigating judge

Paragraph 2 of part 1 of Article 174 of the CPC of Ukraine provides that the seizure of property may also be cancelled entirely or partially by a ruling of the investigating judge during pre-trial investigation upon motion of the suspect, accused, their defense counsel or legal representative, another owner or holder of the property, representative of a legal entity regarding which proceedings are conducted, if they prove that in further application of this measure the need has lapsed or the seizure was imposed unreasonably.

From the analysis of the cited norm it appears that adoption of a decision on cancelling property seizure upon motion of the abovementioned persons is possible only under the following conditions: they prove that in further application of this measure the need has lapsed, or they prove that the seizure was imposed unreasonably.

In the motion, the advocate indicates that the seizure was imposed unreasonably, and therefore, in view of the principle of dispositivity, the investigating judge must establish the presence or absence only of the ground indicated by the advocate for cancelling the seizure.

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Thus, from the content of the motion and materials attached thereto, it was established that within criminal proceeding No. 22017000000000272 dated 6 July 2017, by ruling of the investigating judge of the Shevchenkivskyi District Court of Kyiv dated 13 May 2025 (case No. 761/19003/25, proceeding No. 1-ks/761/19003/25), seizure was imposed on property which including belongs to suspect Bohuslaiev O.V., in particular:

- a share in the charter capital of LLC "Firm «Zhekon»" in the amount of 51 %;

- an apartment with an area of 42.24 sq.m. at the address: Zaporizhzhia, Lenina Avenue, bldg. 129, apt. 37 (RNM - 18402097);

- a garage with an area of 38.2 sq.m. at the address: Zaporizhzhia, servicing cooperative «Dniprohes», garage 49 (RNM - 27062653);

- an apartment with an area of 88.9 sq.m. at the address: Autonomous Republic of Crimea, Yalta, Karla Marksa Street, bldg. 18a, apt. 29 (RNONM - 200428101119).

From the said ruling it appears that the seizure on property was imposed by prohibiting its alienation and disposition with the aim of ensuring possible confiscation of property as a type of punishment, as well as preserving physical evidence.

Besides this, the investigating judge made a decision to transfer the seized property to the National Agency of Ukraine for Finding, Tracing and Management of Assets Derived from Corruption and Other Crimes, for taking measures to manage them in the order and under conditions defined by Articles 19, 21, 21-1 of the Law of Ukraine "On the National Agency of Ukraine for Finding, Tracing and Management of Assets Derived from Corruption and Other Crimes".

From the materials available in the case, it was established that the pre-trial investigation in criminal proceeding No. 22017000000000272 dated 6 July 2017 is conducted by investigators of the Main Investigation Department of the Security Service of Ukraine on suspicion of Bohuslaiev V.O. of committing criminal offenses provided for by Part 5 of Article 191, Part 3 of Article 209 of the CC of Ukraine, Bohuslaiev O.V. of committing a criminal offense provided for by Part 3 of Article 209 of the CC of Ukraine, as well as on grounds of criminal offenses provided for by Part 1 of Article 14, Article 113, Part 2 of Article 209, Part 3 of Article 212, Part 1 of Article 111, Part 3 of Article 15, Part 4 of Article 190, Part 4 of Article 190, Part 4 of Article 358, Part 3 of Article 15, Part 4 of Article 190, Part 2 of Article 364, Part 1 of Article 15, Article 113, Part 1 of Article 333, Part 2 of Article 233, Part 1 of Article 111, Part 2 of Article 111, Part 4 of Article 111-1, Part 4 of Article 111-1, Part 4 of Article 111-1, Part 2 of Article 28, Part 4 of Article 111-1, Part 2 of Article 28, Part 1 of Article 111-2, Part 1 of Article 114-1, Part 2 of Article 28, Part 1 of Article 258-3, Part 1 of Article 333, Part 1 of Article 333, Part 1 of Article 333, Part 1 of Article 111-2, Part 2 of Article 28, Article 219 of the CC of Ukraine.

Article 4 of the Law of Ukraine "On the High Anti-Corruption Court" established that the High Anti-Corruption Court administers justice as a court of first and appellate instances in criminal proceedings regarding crimes assigned to its jurisdiction (jurisdiction of court) by procedural law, as well as by exercising judicial control over compliance with the rights, freedoms and interests of persons in such criminal proceedings in cases and order defined by procedural law.

In connection with this, when examining applications, complaints and motions submitted within criminal proceedings, the investigating judge must primarily examine the question of jurisdiction of such criminal proceeding to the High Anti-Corruption Court, and consequently clarify whether it has powers to examine them.

In view of the above, the investigating judge considers it necessary first of all to clarify whether criminal proceeding No. 22017000000000272 dated 6 July 2017 is under the jurisdiction of the High Anti-Corruption Court and whether it is endowed with powers to examine the advocate's motion to cancel property seizure.

Pursuant to Part 1 of Article 33-1 of the CPC of Ukraine, criminal proceedings regarding corruption criminal offenses provided for in the note to Article 45 of the CC of Ukraine, Articles 206-2, 209, 211, 366-2, 366-3 of the CC of Ukraine are under the jurisdiction of the High Anti-Corruption Court, if at least one of the conditions provided for by clauses 1-3 of part 5 of Article 216 of the CPC of Ukraine is present.

According to clauses 1-3 of part 5 of Article 216 of the CPC of Ukraine, conditions of jurisdiction of criminal offenses defined in Article 33-1 of the CPC of Ukraine to the High Anti-Corruption Court are determined as: 1) presence of a special subject of crime according to the list set out in

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clause 1 of part 5 of Article 216 of the CPC of Ukraine; 2) the size of the object of the criminal offense provided for by Article 354 (regarding employees of legal entities of public law), 368, 369, 369-2 of the CC of Ukraine, exceeds by five hundred or more times the size of the subsistence minimum for able-bodied persons established by law at the time of committing the criminal offense, as well as the object of criminal offense or size of damage caused in criminal offenses provided for by Articles 191, 206-2, 209, 210, 211, 364, 410 of the CC of Ukraine, exceeds by two thousand or more times the size of the subsistence minimum for able-bodied persons established by law at the time of committing the criminal offense (if the criminal offense was committed by an official of a state body, law enforcement body, military formation, local self-government body, business entity in whose charter capital the share of state or communal ownership exceeds 50 percent) and 3) the criminal offense provided for by Article 369, part 1 of Article 369-2 of the CC of Ukraine, was committed regarding an official defined in part 4 of Article 18 of the CC of Ukraine or in clause 1 of this part.

According to part 2 of Article 33-1 of the CPC of Ukraine, investigating judges of the High Anti-Corruption Court exercise judicial control over compliance with the rights, freedoms and interests of persons in criminal proceedings regarding criminal offenses assigned to the jurisdiction of the High Anti-Corruption Court pursuant to part one of this Article.

From the content of written notices of suspicion dated 28 April 2025 and 25 April 2025 it was established that Bohuslaiev V.O. is incriminated with the taking possession of shares of JSC «Motor Sich» on an especially large scale (Part 5 of Article 191 of the CC of Ukraine) with subsequent legalization (laundering) of proceeds from the illegal sale of these shares to citizens of the PRC by prior conspiracy with his son Bohuslaiev O.V. (Part 3 of Article 209 of the CC of Ukraine).

Thus, according to the version of the prosecution, Bohuslaiev V.O., in the period from 17 June 1994 to 1 September 2014 through non-resident companies and legal entities in Ukraine controlled by him as actual beneficial owner (the owner of which were other non-resident companies), formed blocks of shares of JSC «Motor Sich» in the quantity of 1,038,996 shares, which constitutes 50% of the total quantity of issued shares, namely: Business House Helena A.G. – 359,727 (17.3113 %), LLC «Motor-Intercoms» - 201,565 (9.69 %), PrJSC «TD «Olena» - 193,220 (9.2984 %), Granum Corporation - 192,665 (9.2717 %), Enfields Trade & Capital Corp.» - 64,733 (3.1152 %), Waldo Trade Ltd. - 27,086 (1.3035 %).

The decision on privatization of SE «Motor Sich», its transformation into a private joint-stock company and the primary redemption of shares by private individuals took place in 1993-1995. Already from 1994 to 2015, Bohuslaiev V.O. used the results of the illegal privatization of SE «Motor Sich», exercising actual sole control over its activities, concentrating shares of the created JSC «Motor Sich» in his favor, as well as in favor of a number of physical and legal entities controlled by him and his son Bohuslaiev O.V.

After which, Bohuslaiev V.O. and his son Bohuslaiev O.V., acting by prior conspiracy, carried out unlawful concealment of the sources of receipt of 650 million US dollars, disguised as documentary appearance of the lawful sale of shares of the enterprise JSC «Motor Sich», which Bohuslaiev V.O. had previously unlawfully and illegally seized, which contributed to terrorist activity, which at the official exchange rate of the National Bank of Ukraine as of 2 August 2016 constituted 16,135,080,000 hryvnias, that is, is an especially large scale.

As already noted, crimes provided for by Articles 191, 209 of the CC of Ukraine belong to the subject-matter jurisdiction of the High Anti-Corruption Court in case at least one of the conditions provided for by clauses 1-3 of part 5 of Article 216 of the CPC of Ukraine is present.

From the materials of the case it appears that Bohuslaiev V.O. in the period from May 2006 to August 2019 was a People's Deputy of Ukraine, and the alleged criminal activity, according to the investigation version, lasted from 1993 to 2016, that is, it encompassed, in particular, also the period of his staying in the status of People's Deputy of Ukraine.

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Consequently, pursuant to paragraph 1 of clause 1 of part 5 of Article 216 of the CPC of Ukraine, in the specified period Bohuslaiev V.O. had the special legal status of a subject of criminal offense, with the presence of which part 1 of Article 33-1 of the CPC of Ukraine links assigning the criminal proceeding to the subject-matter jurisdiction of the High Anti-Corruption Court.

At the same time, the subject-matter jurisdiction of the High Anti-Corruption Court is determined taking into account the provisions of clause 20-2 of Section XI «Transitional Provisions» of the CPC of Ukraine as worded by the Law of Ukraine No. 100-IX dated 18 September 2019, which came into force on 22 September 2019.

From the said date, jurisdiction of the High Anti-Corruption Court, provided for by the CPC as a court of first instance, court of appellate instance and investigating judges, extends to criminal proceedings, information under which regarding a criminal offense is entered into the Unified Register of Pre-trial Investigations, extends to criminal proceedings, information under which regarding a criminal offense is entered into the Unified Register of Pre-trial Investigations: (1) from the date of entry into force of the Law of Ukraine «On Amendments to Certain Legislative Acts of Ukraine Concerning the Commencement of Operation of the High Anti-Corruption Court», that is, from 22 September 2019; (2) prior to the date of entry into force of the Law of Ukraine «On Amendments to Certain Legislative Acts of Ukraine Concerning the Commencement of Operation of the High Anti-Corruption Court», that is, prior to 22 September 2019, if the pre-trial investigation is conducted or was conducted by the National Anti-Corruption Bureau of Ukraine and completed by prosecutors of the Specialized Anti-Corruption Prosecutor's Office.

Thus, from the extract from the Unified Register of Pre-trial Investigations it appears that criminal proceeding No. 22017000000000272 was commenced on 6 July 2017, that is, prior to the date of entry into force of the Law of Ukraine «On Amendments to Certain Legislative Acts of Ukraine Concerning the Commencement of Operation of the High Anti-Corruption Court», on the fact of possible commission of a criminal offense provided for by Part 1 of Article 14, Article 113 of the CC of Ukraine, with the following brief summary of circumstances: «In the period from 2016 to the present time, unidentified individuals from among the present and former officials and ultimate beneficial owners of the public joint-stock company «Motor Sich» (EDRPOU code 14307794), acting by prior conspiracy among themselves, with the aim of weakening the state through destroying the specified enterprise as an object of important national economic and defense significance, carried out a series of transactions of purchase and sale of the controlling stake of the Factory's shares to non-resident companies Business House Helena A.G. (Panama), Enfields Trade & Capital Corp.» (Panama), «Waldo Trade Ltd.» (Virgin Islands), «Granum Corporation» (Panama), «Skyrizon Aircaraft Holding limited» (Virgin Islands), «Likatron Enerprises Limited» (Cyprus), «Ventalina Management Ltd» (Nevis), which have no intention of conducting business activities with the said companies, but plan liquidation and removal of assets, including production capacities of the only plant in Ukraine for manufacturing civil and military turbojet engines for aviation equipment, outside Ukraine».

From the resolution of Acting Prosecutor General Khomenko O.M. dated 30 September 2025 on resolving a dispute on investigative jurisdiction in criminal proceeding No. 22017000000000272 dated 6 July 2017, it appears that the pre-trial investigation commenced on grounds of a crime provided for by Article 113 of the CC of Ukraine, assigned to the investigative jurisdiction of security agency investigators and is conducted by investigators of the Main Investigation Department of the Security Service of Ukraine.

During the investigation by investigators of security agencies, a series of other crimes were detected, committed both by officials of JSC «Motor Sich» and other persons, and prosecutors took decisions on consolidation with twenty-seven episodes of criminal activity, commenced under various parts of Articles 111, 111-2, 113, 114, 190, 191, 209, 212, 233, 258-3, 219, 333, 358, 364 of the CC of Ukraine.

In particular, on 4 August 2017 information was entered into the Unified Register of Pre-trial Investigations under Part 3 of Article 212 of the CC of Ukraine on the fact that officials of JSC «Motor

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Sich» (EDRPOU code 14307794) acting intentionally, by prior conspiracy with unidentified persons, in violation of tax legislation norms, as a result of minimizing the value of privatized property evade payment of taxes, which leads to non-receipt by the State Budget of Ukraine of funds on an especially large scale».

Also, on 4 August 2017 information was entered under Part 2 of Article 209 of the CC of Ukraine on the fact that officials of JSC «Motor Sich» (EDRPOU code 14307794) acting intentionally, by prior conspiracy with unidentified persons, acquired property obtained as a result of committing a socially dangerous, wrongful act that preceded the legalization (laundering) of proceeds, when determining operations with privatization of property of SE «Motor Sich», through violation of established norms of the Law of Ukraine «On Privatization of State Property» dated 4 March 1992.

On 29 December 2022 information was entered under Part 3 of Article 209 of the CC of Ukraine on the fact that Bohuslaiev V.O. by prior conspiracy with Bohuslaiev O.V., Kunaiev Yu.V., Kononenko P.I., with his son – Kononenko A.P. in the period of time from 2014 to 2022 acquire, possess, use and dispose of property regarding which factual circumstances testify to its receipt by criminal means (in particular providing organizational and other assistance to the activity of a terrorist organization through providing funds to legal entities whose property is indirectly under control of terrorists, as well as legal and physical entities who act on behalf of or under instructions of the specified persons) including through carrying out financial operations, concluding transactions with such property, or transfer, change of form (transformation) of such property.

Under the specified episode, notice of suspicion was served on Bohuslaiev V.O. and Bohuslaiev O.V.

On 20 May 2024 information was entered under Part 5 of Article 191 of the CC of Ukraine on the fact that unidentified officials of JSC «Motor Sich», who acted as a group of persons by prior conspiracy with persons who exercised active control over the enterprise – Bohuslaiev V.O., Bohuslaiev O.V., through abuse of official position committed in their interests misappropriation of property of the enterprise, thereby causing it damage on an especially large scale.

Under the specified episode, notice of suspicion was served on Bohuslaiev V.O.

By the abovementioned resolution of Acting Prosecutor General Khomenko O.M. dated 30 September 2025, investigative jurisdiction of the criminal offenses investigated in criminal proceeding No. 22017000000000272 dated 6 July 2017 was determined for investigators of security agencies - the Main Investigation Department of the Security Service of Ukraine.

Herewith, as appears from the materials attached to the motion, the criminal offenses provided for by Part 5 of Article 191 of the CC of Ukraine and Part 3 of Article 209 of the CC of Ukraine, in committing of which Bohuslaiev V.O. and his son Bohuslaiev O.V. are suspected, were detected precisely during investigation by investigators of security agencies of a series of criminal offenses in criminal proceeding No. 22017000000000272, information regarding which was entered into the Unified Register of Pre-trial Investigations earlier.

Comparing the circumstances of the crimes incriminated against Bohuslaiev V.O. and Bohuslaiev O.V., the investigating judge concludes that by their content they are derived from events information about which was entered into the URPI on 6 July 2017 under Part 1 of Article 14, Article 113 of the CC of Ukraine and on 4 August 2017 under Part 2 of Article 209 of the CC of Ukraine, and also constitute their further development and concretization.

Thus, in the course of the pre-trial investigation, the pre-trial investigation authority carried out clarification of the criminal legal qualification of the actions of persons taking into account the totality of collected evidence and established circumstances, in connection with which in the actions of persons elements of crimes were established distinct from those under which criminal proceeding No. 22017000000000272 was registered initially.

Consequently, the criminal offenses incriminated against Bohuslaiev V.O. and Bohuslaiev O.V. are a consequence of the development of the initial subject of pre-trial investigation

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and are directly related to circumstances that were examined within the specified criminal proceeding.

In view of the established circumstances, the investigating judge concludes that this criminal proceeding is not under the jurisdiction of the High Anti-Corruption Court, since information on the relevant criminal offenses was entered into the Unified Register of Pre-trial Investigations prior to the entry into force of the Law of Ukraine «On Amendments to Certain Legislative Acts of Ukraine Concerning the Commencement of Operation of the High Anti-Corruption Court», while pre-trial investigation therein was not conducted and is not conducted by the National Anti-Corruption Bureau of Ukraine, and procedural supervision was not carried out by prosecutors of the Specialized Anti-Corruption Prosecutor's Office.

Consequently, taking into account that the specified motion is not subject to examination in the High Anti-Corruption Court, and its examination by the investigating judge has already commenced, the proper procedural decision in this case is closure of proceedings on the advocate's motion.

Based on the foregoing, guided by Articles 131, 98, 170-174, 372, 376 of the CPC of Ukraine, the investigating judge

DECIDED:

The proceedings on the motion of advocate Miftakhutdinov V.S. to cancel property seizure, submitted in the interest of Bohuslaiev O.V. within criminal proceeding No. 22017000000000272 dated 6 July 2017 – be closed.

The ruling shall enter into legal force from the moment of its announcement and is not subject to appeal.

Investigating Judge /Signature/ **O.V. Fedorov**



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Ruling (sentence) entered into legal force: 8 May 2026
Court session secretary: /Signature/ A. Homeniuk, 19 May 2026
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High Anti-Corruption Court
/Signature/ Anastasiia HOMENIUK

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